

MUTUAL NON-DISCLOSURE AGREEMENT (LONG FORM)

This Mutual Non-Disclosure Agreement (this "Agreement") is entered into as of the Effective Date by and between the parties identified on the signature page hereto (each, a "Party" and collectively, the "Parties").

1. Confidential Information. "Confidential Information" means any non-public information disclosed by one Party to the other, whether orally, in writing, or in any other form, that is marked as confidential or that would reasonably be understood to be confidential given the nature of the information and the circumstances of disclosure.

1.1 Exclusions. Confidential Information does not include information that (a) is or becomes generally available to the public other than as a result of disclosure by the Receiving Party, (b) was known to the Receiving Party on a non-confidential basis prior to disclosure, or (c) becomes available to the Receiving Party on a non-confidential basis from a source other than the Disclosing Party, provided that such source is not bound by a duty of confidentiality.

2. Term. This Agreement shall remain in effect for a period of two (2) years from the Effective Date. The Parties' obligations of confidentiality shall survive termination for an additional three (3) years.

3. Return of Materials. Upon termination of this Agreement, the Receiving Party shall promptly return or destroy all Confidential Information in its possession, including all copies and extracts thereof, and certify such return or destruction in writing.

4. Governing Law. This Agreement shall be governed by the laws of the State of New York, without regard to its conflict of laws principles.

5. Entire Agreement. This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior or contemporaneous communications and agreements, whether oral or written.

6. Severability. If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect, and the invalid or unenforceable provision shall be modified to the minimum extent necessary to make it valid and enforceable.

7. Notices. All notices, requests, consents, and other communications required or permitted under this Agreement shall be in writing and shall be deemed delivered when personally delivered, sent by confirmed email, or sent by certified mail, return receipt requested.

8. Injunctive Relief. The Parties acknowledge that monetary damages may be inadequate to remedy a breach and that the non-breaching Party shall be entitled to seek injunctive relief and other equitable remedies.

9. Non-Solicitation. For a period of twelve (12) months following termination of this Agreement, neither Party shall directly solicit for employment any employee of the other Party with whom such Party had material contact in connection with this Agreement.

10. Limitation of Liability. In no event shall either Party be liable to the other for any indirect, incidental, special, or consequential damages arising out of or in connection with this Agreement, even if such Party has been advised of the possibility of such damages.

11. Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

PARTY A SIGNATURE: _____

PARTY B SIGNATURE: _____